



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 23, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 201809730 regarding Police Officer Leonardo Viera, Tax No. [REDACTED] (DADS No. 2020-22912) and Police Officer John Brennan, Tax No. [REDACTED] (DADS No. 2020-22911)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter. Having reviewed the totality of the circumstances in this case, the Police Commissioner has determined that Police Officer Viera and Police Officer Brennan were in the midst of a chaotic situation during which both officers used discourteous language. This misconduct, while serious, is best addressed through an imposition of Instructions rather than a Command Discipline.

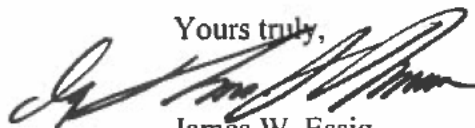
Additionally, Police Officer Viera's statement regarding his potential use of a conducted electrical weapon ("CEW") was made in passing and not as a direct threat. Nonetheless, the Police Commissioner has determined that Police Officer Viera would benefit from additional training from the Police Academy on the subject of the use of force and the use of a CEW.

Therefore, the Police Commissioner directs that Police Officer Viera receive Training at the Police Academy in Patrol Guide Procedure No. 221-01 (Force Guidelines), Patrol Guide Procedure No. 221-02 (Use of Force), and Patrol Guide Procedure No. 221-08 (Use of Conducted Electrical Weapons).

Furthermore, Police Officer Viera and Police Officer Brennan will receive Instructions from their Commanding Officer regarding professionalism, specifically, that the use of profanity is prohibited when it serves no legitimate law enforcement purposes, in accordance with Patrol Guide Procedure No. 203-09 (Public Contact-General Discourtesy).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'James W. Essig', written over the typed name.

James W. Essig
Assistant Chief
Commanding Officer
Police Commissioner's Office